

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

August 24, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	C. vs. County of Orange 2024-01436607	Petition for Writ Court will argument for both parties.
2	CCS Contractor Equipment & Supply, LLC vs. KB Steel & Building Products, a California corporation 2025-01490912	Motion to Compel Production Continued to 11/02/2026
3	CommerceWest Bank vs. Q Technology, Inc. 2025-01529514	1. Motion to Set Aside/Vacate Default 2. Motion to Set Aside/Vacate Default Off Calendar
4	Enriquez Tapia vs. Country Villa Plaza Convalescent Center	Motion to Compel Deposition (Oral or Written) Defendant Santa Ana Healthcare & Wellness Centre LP's ("Defendant") motion to compel deposition of Plaintiff Victor Tapia ("Plaintiff"), and for monetary and terminating sanctions, is granted in part and denied in part. Defendant's request for an order compelling Plaintiff to appear for his deposition and for an award of monetary

	2022-01276368	sanctions is granted. Defendant’s request for a terminating sanction is denied. “The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action ... to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” (Code Civ. Proc., § 2025.280, subd. (a).) A party that noticed a deposition may move for an order compelling the deponent’s attendance if the deponent had been served with a deposition notice and, without having served a valid objection, the deponent “fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).) The motion to compel “shall” be accompanied by a declaration “stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code of Civ. Proc. § 2025.450, subd. (b)(2).) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue.” (<i>Leko v. Cornerstone Bldg. Inspection Serv.</i> (2001) 86 Cal.App.4th 1109, 1124; see also Weil & Brown, Cal. Prac. Guide: Civil Procedure before Trial (The Rutter Group 2025) at ¶ 8:813.2 [good faith inquiry includes attempt to resolve the issue by rescheduling the deposition].) If documents were requested, the motion must be accompanied by a showing of “good cause”—i.e., declarations containing specific facts justifying inspection of the documents described in the notice. (Code Civ. Proc. § 2025.450, subd. (b)(1).) If the moving party demonstrates good cause, then the opposing party must justify any objections. (<i>Kirkland v Superior Court</i> (2002) 95 Cal. App. 4th 92, 98.) Here, Defendant has proffered uncontroverted evidence showing it served Plaintiff with the Fifth Amended Deposition Notice, and that Plaintiff did not object to the notice but did not appear for his duly noticed deposition (or produce any of the documents requested therein). Thereafter, Defendant’s counsel reached out to Plaintiff to get his dates of availability, but Plaintiff did not respond. Plaintiff has not opposed this motion, either. Additionally, Defendant has shown there is “good cause” for the nine categories of documents that Plaintiff was requested to produce at his deposition. Defendant requested Plaintiff produce basic records, such as medial reports, bills,
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		witness statements, and other documents that relate to Plaintiff's alleged injury and damages. Accordingly, the Court grants the motion for an order compelling Plaintiff to comply with the deposition notice and orders Plaintiff to appear for his deposition within 14 days of the notice of ruling, or on such other date as agreed to in writing by Defendant. In connection with the motion, Defendant is awarded \$3,387.06 in attorneys' fees and costs. (Code Civ. Proc., §§ 2023.010, 2023.030.) The Court denies Defendant's request for a terminating sanction. As noted in prior rulings (see ROA 305), Defendant has not met its burden of showing that it would be appropriate for the Court to impose the "ultimate sanction of termination" at this juncture. (<i>Atlas v. Davidyan</i> (2025) 113 Cal.App.5th 1086, 1095; see also Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145.) Defendant shall give notice of the ruling.
5	First Foundation Inc. vs. Keller 2025-01493220	1. Motion to Compel Production 2. Motion to Compel Production 3. Motion to Compel Production 4. Motion to Compel Production Continued to 09/28/2026
6	Le vs. Dang 2024-01429637	Motion to Set Aside/Vacate Default and Judgment Continued to 11/09/2026
7	Lomeli de Facio vs. Sodexo, Inc. 2020-01162342	Motion to Compel Production Stayed per appeal.
8	Martinez vs. Fritzsche	Motion to Compel Deposition (Oral or Written)

	2025-01477393	Defendants Adam Fritzsche's, William Fritzsche's, and Jennifer Fritzsche's motion to compel the deposition of Plaintiff Elmer Paul Martinez, Jr. is granted. Code Civ. Proc. § 2025.450(a) provides that when a party deponent is served with a deposition notice and, without having served a valid objection under Code Civ. Proc. § 2025.410, fails to appear for deposition the party giving notice may move for an order compelling the deponent's attendance and testimony at deposition. The motion must be accompanied by either a meet and confer declaration stating "facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" or "a declaration stating that the moving party contacted the deponent to inquire about the nonappearance." (Code Civ. Proc. § 2025.450(b)(2).) Defendants first noticed Plaintiff's deposition on 8/12/25 for 9/23/25. (Warren Decl., ¶ 4.) Subsequently, based on the parties' agreement, Defendants re-noticed it for 10/23/25, then 12/3/25, and then 1/27/26. (Warren Decl., ¶¶ 5-6.) Defendants again re-noticed the deposition for 2/16/26 (a date provided by Plaintiff's counsel). (Warren Decl., ¶7.) Plaintiff failed to show up for the deposition. (<i>Id.</i>) Plaintiff again failed to show up for his deposition on 2/24/26, which was thereafter provided as an available date by Plaintiff's counsel. (Warren Decl., ¶ 8.) Finally, Defendants noticed the deposition for 3/19/26 and again Plaintiff failed to appear. (Warren Decl., ¶ 9.) Plaintiff filed an opposition stating that Plaintiff is an elderly individual who suffers from diagnosed dementia and other mental health impairments. Counsel outlines the efforts they have taken to try to get Plaintiff to his deposition including arranging transportation, and communicating with the property manager of Plaintiff's residence. The Court is certainly sympathetic with Plaintiff's and his counsel's position, and appreciates counsel's candidness and professionalism. With that said, the only motion presently before the Court is this motion to compel deposition. Plaintiff does not submit any sort of evidence such as medical records or a doctor's note stating that he is not mentally capable of sitting for a deposition. Trial is currently set for October. It is Plaintiff seeking damages from Defendants; thus, Defendants have a right to prepare to defend themselves at trial and take Plaintiff's deposition in furtherance of that end. Accordingly, the motion is granted. Plaintiff is ordered to appear for his deposition within 20 days of this ruling.
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		The parties are ordered to meet and confer regarding any reasonable accommodations that can be made, including the possibility of conducting the deposition at Plaintiff's residence. Defendants' request for sanctions against Plaintiff is granted in the amount of \$447.00 to be paid within 30 days. (Code Civ. Proc., § 2025.450(g)(1).) A finding of willfulness is not a prerequisite to imposing sanctions. There is no evidence before the Court that supports that Plaintiff acted with substantial justification here. As stated above, Defendants have noticed the deposition on seven different occasions, beginning almost a year ago. They have no doubt incurred significantly more in costs (e.g., court reporter non-appearance fees) than they request. Defendants shall give notice.
9	McPherson vs. Donald & Lynn Southard, LLC 2025-01494975	Demurrer to Complaint The Court overrules Defendant Donald & Lynn Southard LLC's Demurrer to Plaintiff Bonita M. McPherson on behalf of Western Tap Manufacturing Company, Inc.'s Complaint. Defendant shall answer the Complaint within 15 days. <u>RJN</u> The Request for judicial notice is granted. However, the Court may not take judicial notice of the truth of the matter stated in the documents. (<i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed therein. (<i>Fremont Indem. Co. v. Fremont Gen. Corp.</i> (2007) 148 Cal.App.4th 97, 113.) The court cannot accept as true the contents of pleadings or exhibits in the other action just because they are part of the court record or file. Such documents are inadmissible hearsay. (<i>Day v. Sharp</i> (1975) 50 Cal.App.3d 904, 914.) Further, the Court may take judicial notice of documents recorded with the County Recorder's Office; however, that does not mean it may take judicial notice of factual matters stated therein. (<i>Poseidon Development, Inc. v. Woodland Lane States, LLC</i> (2007) 152 Cal.App.4th 1106, 1117.) Courts may also take judicial notice of a

variety of matters that can be deduced from the documents, such as the parties, dates, and legal consequences of a series of recorded documents relating to a real estate transaction. (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 264-265.)

Merits

Defendant argues that the statute of limitations has run on the three claims for:

1. Aiding and abetting breach of fiduciary duty
2. Unlawful fraudulent transfer
3. Aiding and abetting fraudulent transfer

“In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (*Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403.)

The statute of limitations for breach of fiduciary duty is three years or four years, depending on whether the breach is fraudulent or nonfraudulent. (See *Fuller v. First Franklin Financial Corp.* (2013) 216 Cal.App.4th 955, 963 [“limitations period is three years ... for a cause of action for breach of fiduciary duty where the gravamen of the claim is deceit, rather than the catchall four-year limitations period that would otherwise apply...”]; *William L. Lyon & Associates, Inc. v. Superior Court* (2012) 204 Cal.App.4th 1294, [“[b]reach of fiduciary duty not amounting to fraud or constructive fraud is subject to the four-year ‘catch-all statute’ of Code of Civil Procedure section 343”].) The statute of limitations for aiding and abetting a breach of fiduciary duty is the same as the statute of limitations for breach of fiduciary duty. (*American Master Lease LLC v. Idanta Partners, Ltd.* (2014) 225 Cal.App.4th 1451, 1479.)

The statute of limitations on a fraudulent transfer claim is four years from the time transfer was made or the obligation was incurred. (Civ. Code § 3439.09(a), (b).) In cases involving actual fraud, the four-year statute is extended until one year after the transfer or obligation was or reasonably could have been discovered (subject to the maximum 7 year limit). (Civ. Code § 3439.09(a); *Potter v. Alliance United Ins. Co.* (2019) 37 Cal.App.5th 894, 905-906.)

The statute of limitations runs from the date of judgment, not the date of transfer. (*Potter, supra*, at pp. 905-906 citing *Cortez v. Vogt* (1997) 52 CA4th 917, 937)—alleged fraudulent transfer occurred during pending lawsuit preceding entry of judgment.)

Any claim challenging a fraudulent transfer or obligation is extinguished if no action is brought or levy made within seven years after the transfer was made or the obligation was incurred. (Civ. Code § 3439.09(c).)

Here, Defendant argues that the 2016 Quitclaim Deed transfer to Southard LLC was in January of 2016 – almost ten years before the Complaint in this action was filed and acknowledged by Plaintiff in 1/2/18. The Complaint in this case was filed on 7/7/25. (ROA 2)

But Defendant ignores the allegations in this Complaint. The alleged bad act is the transfer that took place on **July 6, 2022**, after Judgment was entered in Plaintiff's favor and while appeal was pending. (Compl., ¶46.)

Further, the Court of Appeal issued remittitur and the final Judgment in the underling case was not issued until 10/8/2024. The statute of limitations runs from the date of judgment, not the date of transfer. (*Potter v. Alliance United Ins. Co.* (2019) 37 CA5th 894, 905-906 (citing *Cortez v. Vogt* (1997) 52 Cal.App.4th 917, 937—alleged fraudulent transfer occurred during pending lawsuit preceding entry of judgment.)

On Reply, Defendant argues that the original Judgment (ordered that title to the property be "turned over" to Western Tap and named the LLC as a party to the case. Those portions of the Judgment were found to be erroneous and were ordered stricken by the Court of Appeal. (Compare 3/30/2021 Judgment After Trial, Case No. 30-2018-00964601-CU-BT-CJC, ROA 564 with 10/8/2024 Judgment After Trial and Post-Appeal, ROA 941.)

This appears to be a different argument, not involving the statute of limitations.

Regardless, the 2024 Judgment says that within 45 days after the parties produce financial records associated with Western Tap:

...the parties are ordered to meet and confer and attempt to come to an agreement on the amounts that Defendants Don and Lynn Southard and Rob McPherson are to reimburse Western Tap for unauthorized distributions of money and unauthorized payments of their personal expenses. If the parties cannot come to an agreement on what amounts should be reimbursed, then this Court shall appoint a receiver under California Code of Civil Procedure section 564 to address a

		determination regarding the amount that Defendants Don and Lynn Southard and Rob McPherson are to reimburse Western Tap for unauthorized distributions of money and unauthorized payments of their personal expenses. <u>Any such monies should be deducted from distributions payable to any of the Defendants, including from proceeds from the sale of the Dale Street Property</u> (October 8, 2024 Judgment, emphasis added.) Moreover, prior to the conveyance, “pending the decision of the Court of appeal.....counsel for Plaintiff in the Lawsuit advised counsel for the Southards that....no alienation of the property should occur before the Plaintiff’s appeal was resolved.” (Compl. ¶ 46.) Thus, whether the original Judgment or the Judgment after Trial and Post-Appeal was in effect, both contemplated a lien on the property. Defendant has not shown that the statute of limitations has run on any of the claims on demurrer. Thus, the Motion is overruled.
10	Mohan vs. USC Developers LLC 2026-01562032	Motion to Expunge Mechanics Lien Off Calendar
11	Nguyen vs. Gonzales 2024-01374578	Demurrer to Amended Complaint Defendant Gallagher Bassett Services, Inc.’s demurrer to Plaintiff Peter Nguyen’s Second Amended Complaint is sustained. The Court takes judicial notice of Plaintiff’s First Amended Complaint (ROA 13) on its own motion. (See <i>Holland v. Morse Diesel Intern., Inc.</i> (2001) 86 Cal.App.4th 1443, 1447–1448.) A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and

incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

6th cause of action for negligence

The elements of negligence are: “(1) a legal duty to use due care; (2) a breach of such legal duty; [and] (3) the breach as the proximate or legal cause of the resulting injury.” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

Plaintiff alleges that “Defendant GALLAGHER BASSETT voluntarily undertook to investigate and handle Plaintiffs claim. In doing so, it owed a duty to exercise reasonable care.” (2AC, pg. 6.)

Plaintiff’s First Amended Complaint (“FAC”) attached letters confirming that Gallagher Bassett is a third-party claims administrator for Garden Grove Hospital. (FAC, Exs. B and C.) In the first letter, Defendant states it was retained by Garden Grove Hospital to investigate Plaintiff’s claims. (FAC, Ex. B.) Defendant then followed up to state that it completed its investigation and denied the claim. (FAC, Ex. C.)

As a matter of law, Defendant cannot be liable for Plaintiff’s claims, as agents and third-party claims administrators are not liable in tort to third parties for performance of their duties and responsibilities to their principal. (See *Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 576 (agents of defendant not liable/had no duty to plaintiff as a result of insurer defendants’ alleged breaches if duty); *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 824 (same); *Thompson v. Cannon* (1990) 224 Cal.App.3d 1413, 1415, 1418 (independent insurance adjuster who investigated claim for fire insurer owes no fiduciary duty to insured); *Lippert v. Bailey* (1966) 241 Cal.App.2d 376, 383-384 (action against insurance agents improper because negligence is attributed only to the agents’ principal/the insurer).)

In addition, in *Sanchez v. Lindsey Morden Claims Services, Inc.* (1999) 72 Cal.App.4th 249, the court held that an “independent

adjuster engaged by an insurer owes no duty of care to the claimant insured, with whom the adjuster has no contract. The adjuster is not liable in tort to the insured for alleged negligent claims handling which causes only economic loss.” (*Id.* at 250-251.)

Plaintiff argues that he states allegations establishing independent tort liability on the part of Defendant Gallagher, based on its own conduct. These allegations are not supported by Plaintiff’s prior pleadings. The First Amended Complaint establishes that Defendant was hired by Garden Grove Hospital to investigate Plaintiff’s, contrary to Plaintiff’s allegations in the 2AC (that Defendant voluntarily undertook its investigation). The alleged facts and exhibits do not support Defendant’s direct liability to Plaintiff.

Courts “will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) “Where, as here, a demurrer is to an amended complaint, we may consider the factual allegations of prior complaints, which a plaintiff may not discard or avoid by making ‘contradictory averments, in a superseding, amended pleading.’” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034 (citations and quotation marks omitted).)

Accordingly, Plaintiff fails to plead a negligence claim against Defendant Gallagher.

7th cause of action for aiding and abetting

“Liability may ... be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person.” (*Richard B. LeVine, Inc. v. Higashi* (2005) 131 Cal.App.4th 566, 574.)

Plaintiff alleges that “Defendant GALLAGHER BASSETT had knowledge of the wrongful conduct of Defendants SINCLAIR, GONZALES, and HOSPITAL,” and “substantially assisted or encouraged such conduct.” (2AC, pg. 6.)

Pursuant to “the agent's immunity rule, an agent is not liable for conspiring with the principal when the agent is acting in an official

capacity on behalf of the principal.” (*Fiol v. Doellstedt* (1996) 50 Cal.App.4th 1318, 1326 [citing *Applied Equip. Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 512, fn. 4]; see also *Berg & Berg Enterprises, LLC v. Sherwood Partners, Inc.* (2005) 131 Cal.App.4th 802, 817.)

The demurrer to this cause of action is therefore also sustained.

8th cause of action for declaratory relief

Code of Civil Procedure §1060 provides: “Any person ... who desires a declaration of his or her rights or duties with respect to another, ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action ... in the superior court....” (Italics added.) “Thus, declaratory relief is appropriate only where there is an actual controversy, not simply an abstract or academic dispute.” (*Connerly v. Schwarzenegger* (2007) 146 Cal. App. 4th 739, 746–47 (citations omitted).)

Plaintiff alleges: “An actual controversy exists regarding the rights and obligations of the parties arising out of the July 21, 2023 incident.” (2AC, pg. 6.)

As pled, this cause of action is derivative of Plaintiff’s other causes of action. “Generally, an action in declaratory relief will not lie to determine an issue which can be determined in the underlying tort action.” (*California Ins. Guarantee Assn. v. Superior Court* (1991) 231 Cal.App.3d 1617, 1623–1624.) Code Civ. Proc., § 1060 “should not be used for the purpose of anticipating and determining an issue which can be determined in the main action,” as the “object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues.” (*Id.* [citing *General of America Ins. Co. v. Lilly* (1968) 258 Cal.App.2d 465, 470].)

Thus, the Court sustains the demurrer to the 8th cause of action as well.

Plaintiff submitted a response to Defendant’s reply brief. (ROA 160.) There is nothing in the Code of Civil Procedure that provides for such a filing. Accordingly, the Court has not considered it.

The Court is inclined to sustain Defendant’s demurrer without leave to amend unless Plaintiff is able to articulate a factual basis for these claims at the hearing.

		Defendant shall give notice. Case Management Conference CMC and OSC for service on all remaining defendants 12-14-26 at 9:00 a.m.
12	Soule vs. Ascensus LLC 2025-01535494	Motion to Deem Facts Admitted Plaintiff Luke Soule’s Motion for Order Deeming Requests for Admission Admitted is denied. The Court grants Plaintiff’s request for judicial notice of the motion to strike filed on 4/6/26. If a party fails to serve a timely response to requests for admission, the requesting may move for an order that the requests be deemed admitted. (Code Civ. Proc. § 2033.280, subd. (b).) The court “shall” make this order unless, before the hearing, a proposed response in substantial compliance with CCP section 2033.220 has been served. (<i>St. Mary v. Superior Court</i> (2014) 223 Cal.App.4th 762, 776 [service of substantially compliant responses prior to the hearing on the “deemed admitted” motion will defeat a propounding party’s attempt to have the requests deemed admitted].) The moving party need not meet and confer before bringing this motion. (<i>Id.</i> at pp. 777-778.) The Court finds Plaintiff is not entitled to relief under CCP section 2033.280, because Defendant timely served its response on 4/7/26. (Soule Decl. at ¶ 7; Peterson Decl. at ¶ 6, Exh. B.) A “response” to a request for admission includes: an answer, an objection, or a partial objection and answer. (Code Civ. Proc., §§ 2033.210, subd. (b), 2033.230, subd. (a).) Although Plaintiff complains that Defendant’s response consists “entirely of identical boilerplate objections — without a single admission, denial, or statement of insufficient knowledge,” this is not a basis for deeming the matters in the requests admitted. (Code Civ. Proc., § 2033.280, subd. (b).) Rather, the appropriate motion is a motion to compel a <i>further</i> response under CCP section 2033.290. Plaintiff’s reliance on <i>Appleton</i> is misplaced. <i>Appleton</i> is not applicable, because it merely stands for the holding that the actual answers must be verified, and unverified responses may result in the imposition of sanctions. (<i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 635–636.) However, when a response consists of only

		objections, a signature from the attorney may be required, but not a verification from the client. (Code Civ. Proc., § 2033.240, subd. (a).) Thus, a failure to provide a verification for objection-only responses does not challenge the timeliness of the responses served, or result in a waiver of objections. The Court notes that Plaintiff also cites to CCP section 2033.290 in his notice of motion. However, the notice of motion does not otherwise request relief in the form of an order compelling further responses. Rather, a request for “alternative” relief is buried in a single sentence on page 18 of the memorandum. The Court finds this notice was insufficient. But, even if the Court were to overlook the notice defect, the alternative request would still be denied because Plaintiff did not comply with the meet and confer or separate statement required by the Code for a motion to compel further response. (Code Civ. Proc., § 2033.290, subd. (b)(1) [meet and confer requirement]; Cal. R. Ct. Rule 3.1345(a)(1) [separate statement requirement].) The fact that Plaintiff is self-represented does not excuse his compliance with the Code. (<i>Harding v. Collazo</i> (1986) 177 Cal.App.3d 1044, 1055; see also <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284.) In prevailing on its opposition to this motion, Defendant Ascensus, LLC is awarded \$2,700 in reasonable monetary sanctions against Plaintiff Luke Soule. (Code Civ. Proc. § 2033.290, subd. (d).) The sanctions are payable to Defendant’s counsel, Thompson Hine LLP, within 30 days. Defendant shall give notice of the ruling. Case Management Conference – continued to 9/14/26 @ 1:30 p.m.
13	Wells Fargo Bank, National Association vs. Gallegos 2009-00309425	Motion to Vacate Order Granting Summary Judgment Defendant Roberto F. Gallegos’ (“Defendant”) Motion To Vacate Order Granting Summary Judgment is denied. Defendant moves, under Code of Civil Procedure (the “Code”) sections 473(b) and 2033.300, to vacate the Order granting Plaintiff Wells Fargo Bank, National Association’s (“Plaintiff”) motion for summary judgment, which was entered on 3/16/26 (ROA 191). Plaintiff filed its Complaint in this action on 10/7/09. (ROA 1.) A default judgment was entered on 4/19/10. (ROA 16.) Defendant filed a motion to vacate default judgment on 2/23/24. (ROA 44.) The Court granted Defendant’s motion on 5/30/24, after finding deficiencies in

the substitute service that had purportedly been accomplished. (ROA 64.) After unsuccessfully demurring to the Complaint (ROA 104), Defendant filed an answer on 2/6/25. (ROA 105.)

On 4/23/25, Plaintiff filed a motion for order deeming its first sets of requests for admission admitted, after Defendant failed to serve responses to the requests served on 2/26/25. (ROA 121.) On 9/8/25, the Court granted the motion and deemed the matters in the requests admitted after Defendant failed to oppose the motion or show that Code-compliant responses had been served before the hearing. (ROA 143.)

On 10/28/25, Plaintiff filed a motion for summary judgment, which was supported by both the deemed admissions and evidence that had separately been proffered in support of the motion. The moving papers included: a notice of motion, memorandum of points and authorities, evidence, a separate statement, and a proof of service. (ROA 153, 155, 157-159.)

Defendant filed a motion for judgment on the pleadings on 2/3/26, wherein he argued that Plaintiff's claims were time-barred (ROA 177), but he did not file an opposition to the MSJ, nor did he request a continuance of the MSJ hearing. After taking the MSJ under submission, the Court issued an order granting the motion, on 3/16/26, based on the evidence submitted in support of the motion, the deemed admissions, and in the exercise of the Court's discretion under CCP section 437c(b)(b) (i.e., for failure to submit an opposing separate statement where the moving party has met its initial burden). (ROA 191.)

Presently, Defendant contends the Order granting summary judgment should be vacated "on the grounds of excusable neglect, medical incapacity, and in the interests of justice." (Mot. at p. 2.)

Code section 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party. A motion for discretionary relief under section 473(b) must satisfy three requirements. First, the motion must be made "within a reasonable time" and "in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code of Civ. Proc., § 473, subd. (b).) Second, the motion must show that the "judgment, dismissal, order, or other proceeding taken against [the moving party]" was taken as a result of "mistake, inadvertence, surprise, or excusable neglect." (Code of Civ. Proc., § 473, subd. (b).) Lastly, the motion "shall be accompanied" by a copy of the answer or other proposed pleading to be filed, "otherwise the application shall not be granted." (Code of Civ. Proc., § 473, subd. (b).) "The party seeking relief . . .

bears the burden of proof in establishing a right to relief,” and must establish both “a satisfactory” excuse and “diligence in making the motion.” (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410.)

Code section 2033.300 permits a party, *upon noticed motion and leave of court*, to “withdraw or amend an admission made in response to a request for admission.” (Code Civ. Proc., § 2033.300, subd. (a).) As noted in Rutter, although section 2033.300 “refers only to withdrawal or amendment of an admission, this includes admissions *deemed* admitted by the court under CCP § 2033.280(b) for failure to respond.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:1386, emphasis in original.) The showing required for relief under section 2033.300 is similar to the showing required for relief under section 473, except that the former also requires a showing that “the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.” (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420.)

The Court finds Defendant is not entitled to relief under section 473(b), because he has not shown that the Order was the result of his *excusable* neglect. Even if the Court were to consider the evidence Defendant submits with his reply papers, the evidence fails to convince the Court that his failure to oppose the MSJ was due to *excusable* neglect. The Court does not doubt that Defendant suffered from health conditions that would have interfered with his ability to present a defense from November 2025 through January 2025. The opposition to the MSJ was not due until on or about 2/10/26. Despite being able to file the MJOP on 2/3/26, Defendant did not file an opposition to the MSJ, nor did he even seek so a continuance of the hearing.

Defendant is not entitled to relief under CCP section 2033.300, because he has never brought a motion for relief from the deemed admissions. (*Stover v. Bruntz* (2017) 12 Cal.App.5th 19, 31 [self-represented litigant was not “entitled to submit belated responses to the request for admissions without first moving the court to have the deemed admissions withdrawn, which she failed to do”].) In his motion, Defendant claims “the Court did not address Defendant’s request to withdraw deemed admissions.” (Mot. at p. 2.) However, he fails to point to any filing in the record that shows a motion was ever properly before the Court. Plaintiff claims he “became seriously ill beginning July 4, 2025,” but he fails to proffer any evidence showing he was unable to respond to the RFA or oppose the motion to deem RFA admitted from March 2025 through September 2025.

Finally, the Court notes that Defendant has not submitted a proposed pleading. The Court could construe the tardy opposition he filed to the MSJ, on 2/24/26, as his proposed pleading (ROA 186), but it would not change the result of the ruling. Defendant opposed the MSJ on the grounds that: the default judgment had been declared void; “material issues remain regarding jurisdiction, service of process, and the procedural posture of this action following the Court’s order vacating judgment”; and, “the prior void judgment and procedural irregularities preclude summary judgment.” (ROA 186 [Opp’n at pp. 2-3].) None of these arguments have merit.

First, the prior default judgment has no bearing on the MSJ that followed after the Court granted Plaintiff relief from the default judgment. The Order granting the MSJ does not rely, at all, on the prior default judgment. (ROA 191.) Second, after Defendant had been granted relief from the default judgment, to the extent there were *still* any issues regarding personal jurisdiction or service of process, they were waived by the fact that Defendant filed an answer to the complaint on 2/6/25 (ROA 105). (Code Civ. Proc., § 410.50; *Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145.) Third, Defendant did not explain what “procedural irregularities” would have prevented the Court from granting summary judgment. To the contrary, the record shows the MSJ was properly supported by a notice of motion, memorandum of points and authorities, evidence, a separate statement, and a proof of service. (ROA 153, 155, 157-159.)

Lastly, Plaintiff still has not submitted a proposed opposing separate statement. Thus, the Order granting the MSJ would still be appropriate, because the Court exercised its discretion “under CCP section 437c(b)(3), to grant the motion on the grounds that Defendant did not submit an opposing separate statement” (and after finding Plaintiff had met its initial burden). (ROA 191.)

For all the foregoing reasons, Defendant’s motion is denied.

Plaintiff shall give notice of the ruling.